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# Architecture and the Instruments of Law

## *The Building Code*

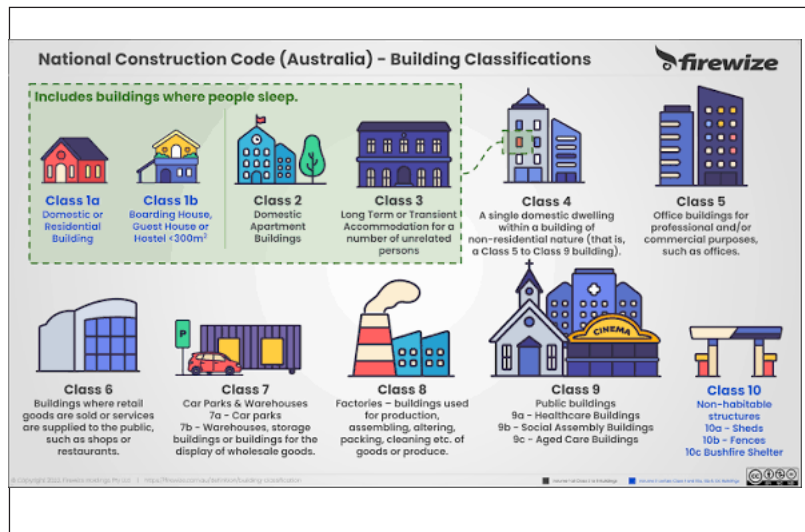
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**Professional Practice 1**

Helen Duong + Peter Brew | RMIT Architecture

## Buildings divided into types/rates

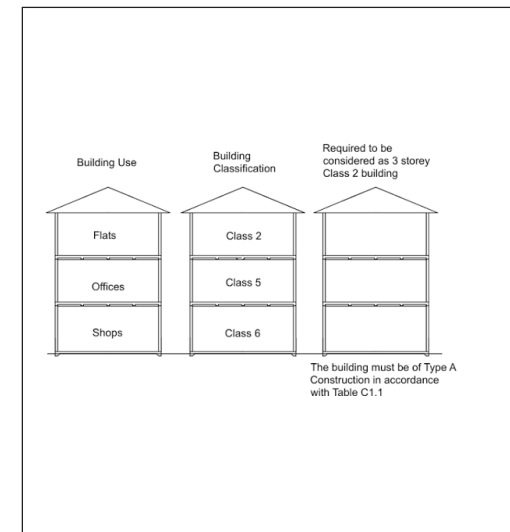
A6 — Building classifications



Buildings are classified by use:  
Class 2, 3, 5, 6, 9 etc.

## Type determines construction

C2D2 — Type of construction  
required

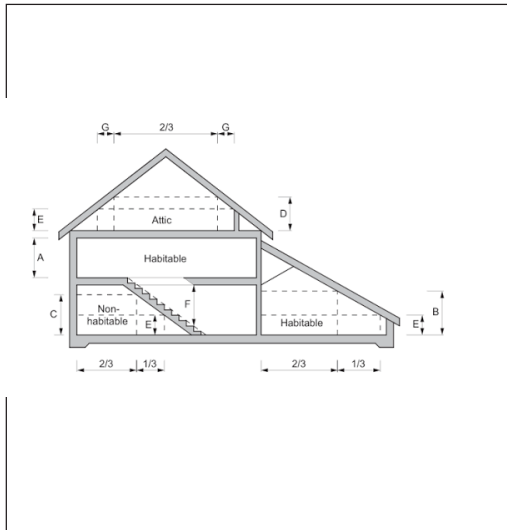


Building class + rise in storeys  
determines Type A, B or C  
construction.

Today: NCC

## Minimum internal dimensions

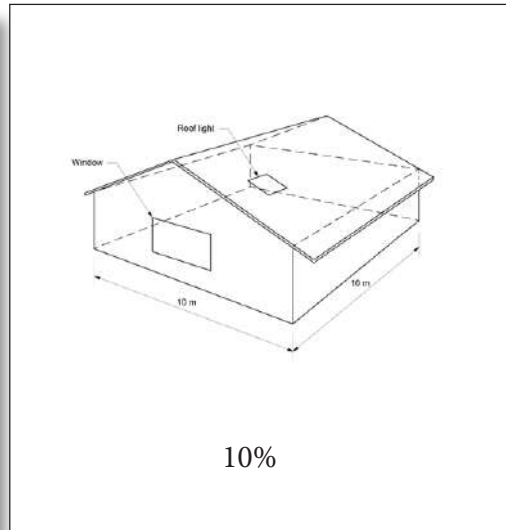
F5D2 — Heights of rooms and other spaces



e.g. many rooms 2.4 m, corridors/sanitary spaces 2.1 m, assembly spaces over 100 people 2.7 m.

## Light converted into a measurable requirement

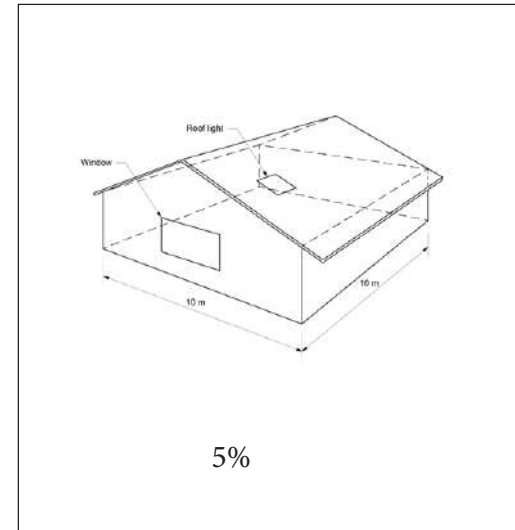
F6D2–F6D3 — Provision / methods and extent of natural light



Whether natural light is required and the quantitative means by which it is provided.

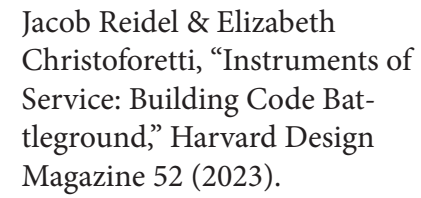
## Ventilation converted into a measurable requirement

F6D6–F6D7 — Ventilation of rooms / Natural ventilation



Natural ventilation can be expressed through openable area relative to floor area; otherwise mechanical ventilation standards apply.

Today: NCC



## Instruments of Service

COMPLIANCE  
LEVEL

## PERFORMANCE REQUIREMENTS

COMPLIANCE  
SOLUTIONS

PERFORMANCE  
SOLUTION

and/or

DEEMED-TO-SATISFY  
SOLUTION

**The outcome is prescribed;  
the solution is interpreted  
and demonstrated.**

**The solution is already  
written into the instrument.**

Other options are tested and  
confirmed by subject experts  
i.e. DDA consultants, facade  
engineer.

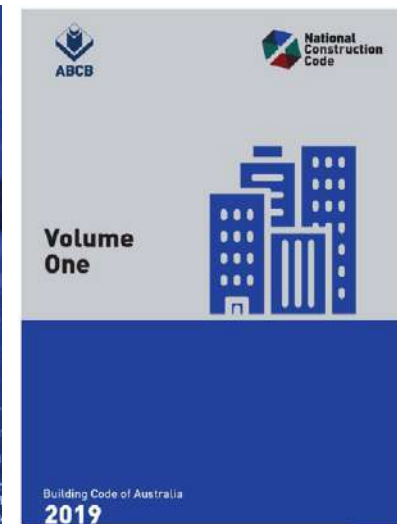
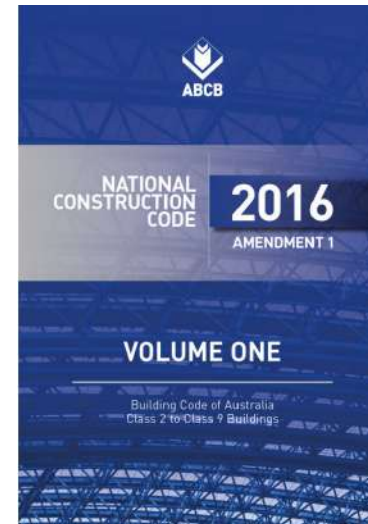
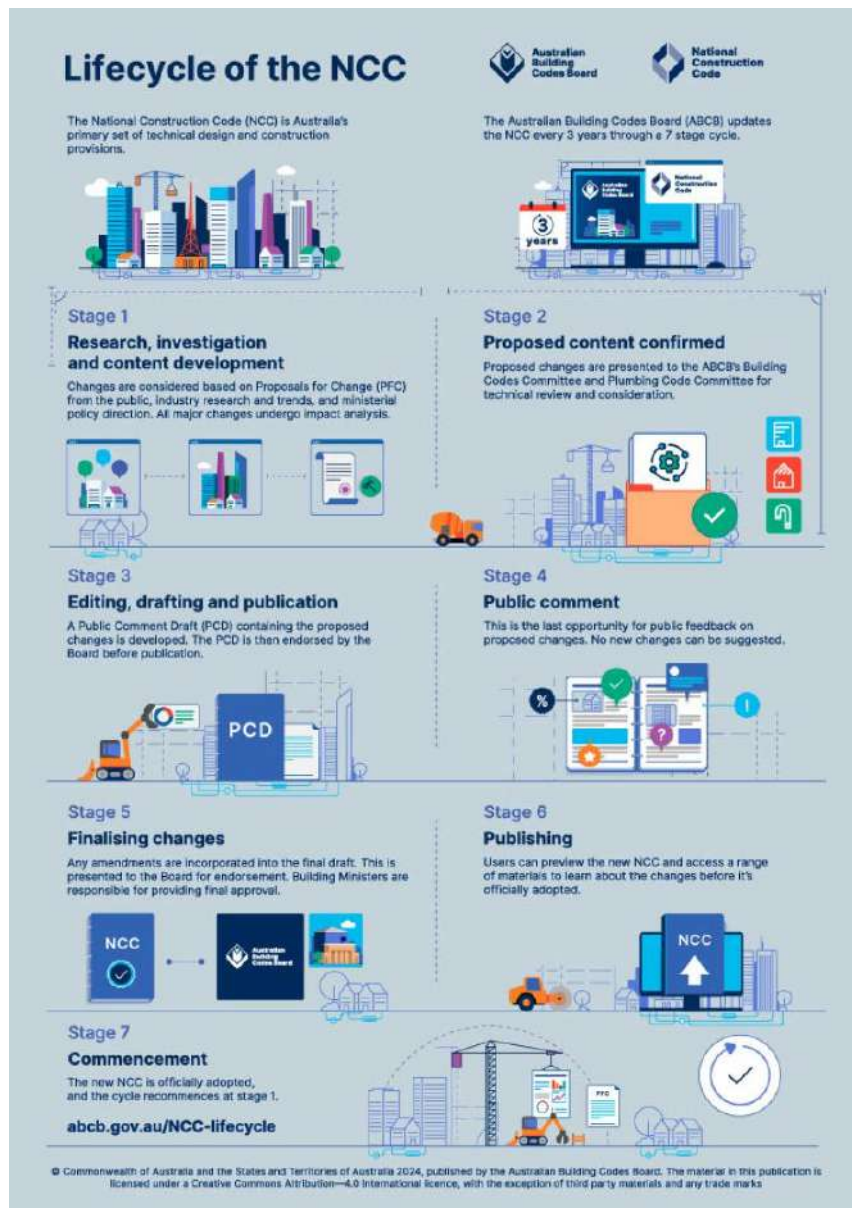
Architect determines with  
Building Surveyor

*Bespoke*

*Standard*

What if the Performance Requirement itself contains an assumption that needs to change?





Written → interpreted → amended → repealed

Law is provisional

SUBJECT

~~What must I do?~~

INTERPRETER

Why does this requirement exist?

What problem is it trying to solve?

What values does it contain?

CO-AUTHOR

Who gets to participate in changing it?

Are its assumptions still adequate?

*how rules are made, what worlds they produce, and what  
agency architects have within and over them*

The Building Code as more than compliance

# ARCHITECTS AND ENGINEERS: PRACTISING IN THE PUBLIC INTEREST

JOHN COOKE\*

## I. REGULATION

Standards of practice of architects and engineers, whether members of a professional institute or not, are controlled by legislation and to a greater extent by common law principles which are concerned only indirectly with the good of society at large. The provision of services by architects is governed by the Architects Acts and Ordinances in the States and Territories. Except in Queensland, the use of the title 'engineer' is unrestricted.<sup>1</sup>

Architects and engineers who are members of the Royal Australian Institute of Architects ('RAIA') and the Association of Consulting Engineers Australia ('ACEA') do not have a monopoly on the provision of architectural and engineering consulting services. Nor are members of the RAIA and the ACEA immune from the impact of s 45 of the *Trade Practices Act* 1974 (Cth) on anti-competitive agreements. In this context architects and engineers who are members of professional associations are indistinguishable from members of

\* B Arch (Sydney), LLB, MSc (Building) (NSW), FRAIA; Chartered Architect; Solicitor, Blake Dawson Waldron.

<sup>1</sup> *Professional Engineers Act* 1988 (Qld).

The good is defined by the law,  
that we must assume it is written  
into the planning scheme and the  
building code. I.e. the politician  
in writing these into existence  
expresses the will of the people.

in Architects and Engineers:  
Practising in the Public Interest;  
Cooke, John

Institution of the law  
vs  
the will of the people

John Cooke  
Architects and Engineers: Practising in the Public Interest  
UNSW Law Journal 14(1), 1991, 73–101

# John Cooke-can the Building Code be ethical?



Reconstructing the city as a functioning social,  
economic and physical system.



The Great Fire of London, depicted  
by an unknown painter (1675)

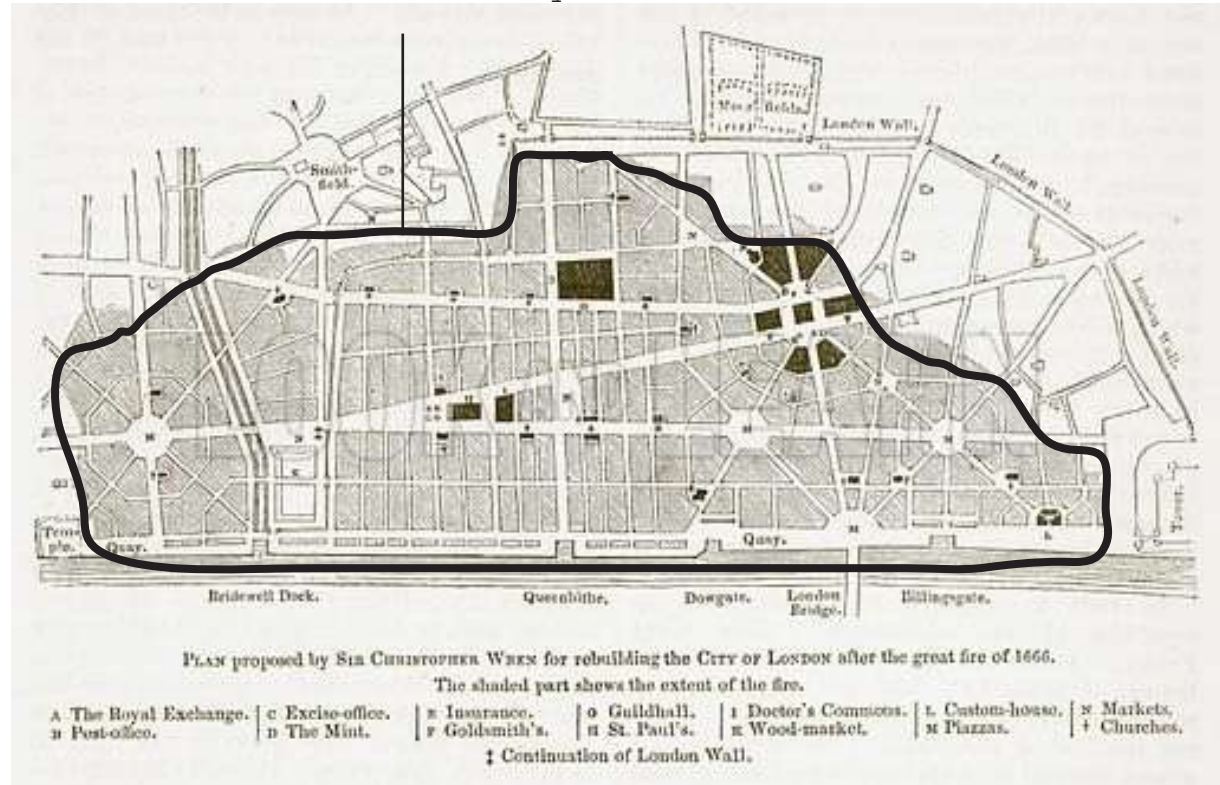
Rebuilding of London Act 1666 + Fire of London Disputes Act 1666

effect of 1666 fire across  
the old walled city



Monument to the Great Fire of London, a towering 202-foot (61.6 m) fluted Roman Doric stone column designed by Sir Christopher Wren and Robert Hooke

**Funding via Coal Tax**



Sir Christopher Wren's proposed geometric master plan for

**Street Regulation widen lanes to  
improve transport, fire breaks**

**London Act 1666: defined construction of the city**





## Moreland Planning Scheme

Last updated: 6th May 2020 [See recent amendments](#)

### Planning Schemes Online is closing

From early 2020 the Victoria Planning Provisions and all Victoria planning schemes (including ordinance, maps, histories, amendments and incorporated documents) will only be available on the **Victorian Planning Portal**, [www.planning.vic.gov.au](http://www.planning.vic.gov.au).

Please update any links or bookmarks to [Browse Planning Schemes](#) or to the relevant planning scheme page in readiness for the closure of this site.



### Resources

Visit the links below for other planning scheme related resources

[VC148 Clause Finder](#)

[Victoria Planning Provisions](#)

[VicPlan](#)

[Planning Maps Online](#)

Planning Schemes: define construction of the city

Buildings divided  
into types/rates

Type determines  
construction

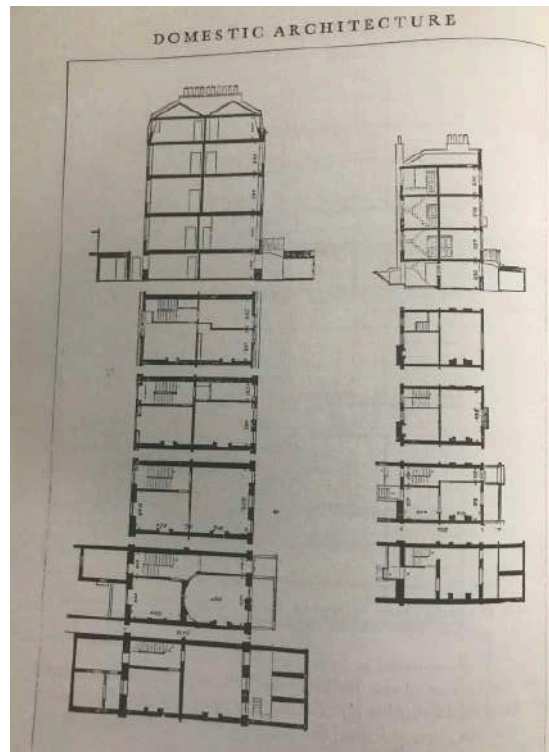
Minimum internal  
dimensions

Light converted  
into a measurable  
requirement

Ventilation converted  
into a measurable  
requirement

## Standardized Housing:

### The Lesser and The Larger House



British History Online — An Act for re-  
building the City of London (1666)

| Bricks.                                                                     | Division of Story |                                           | Height of Story |                                                          | Thicknes of Walls   | Bricks |                                            | Bricks |
|-----------------------------------------------------------------------------|-------------------|-------------------------------------------|-----------------|----------------------------------------------------------|---------------------|--------|--------------------------------------------|--------|
|                                                                             |                   |                                           | Foote           |                                                          |                     |        |                                            |        |
| First sort being the least Houses fronting By Streets and Lanes             | Cellars           |                                           | 6½              |                                                          | To the First Floore | 2      |                                            | 1½     |
|                                                                             | 1 Story           |                                           | 9               |                                                          | 2d                  | 1½     |                                            | 1½     |
|                                                                             | 2 Story           |                                           | 9               | 3d                                                       | 1½                  |        | 1½                                         |        |
|                                                                             | Garrets           |                                           |                 |                                                          |                     | 1      |                                            | 1      |
| Second sorte Houses fronting all Streets Lanes of Note and River of Thames. | Cellars           | 6½                                        |                 |                                                          | To the First Floore | 2½     |                                            | 2      |
|                                                                             | 1 Story           | Not lesse [in (fn. 20) height cleare then | 10              | Thicknes of Walls in Front and Reere from the Foundation | 2d                  | 2      | Thicknes of Walls betweene House and House | 1½     |
|                                                                             | 2 Story           | Where y <sup>e</sup>                      | 10              | 3d                                                       | 2                   | 1½     |                                            |        |
|                                                                             | 3 Story           | Springs pp[re]vent not                    | 9               |                                                          | 4th                 | 1½     |                                            | 1½     |
|                                                                             | Garrets           |                                           |                 |                                                          |                     | 1      |                                            | 1      |
| Third sort Houses fronting all High Streets and Lanes of Note               | 1 Story           |                                           | 10              |                                                          | 1st                 | 2½     |                                            | 2      |
|                                                                             | 2 Story           |                                           | 10½             |                                                          | 2d                  | 1½     |                                            | 1½     |
|                                                                             | 3 Story           |                                           | 9               |                                                          | 3d                  | 1½     |                                            | 1½     |
|                                                                             | 4 Story           |                                           | 8½              |                                                          | 4th                 | 1½     |                                            | 1½     |
|                                                                             | Garrets           |                                           |                 |                                                          |                     | 1      |                                            | 1      |

Scantlings of Timber for the first sort of Houses.

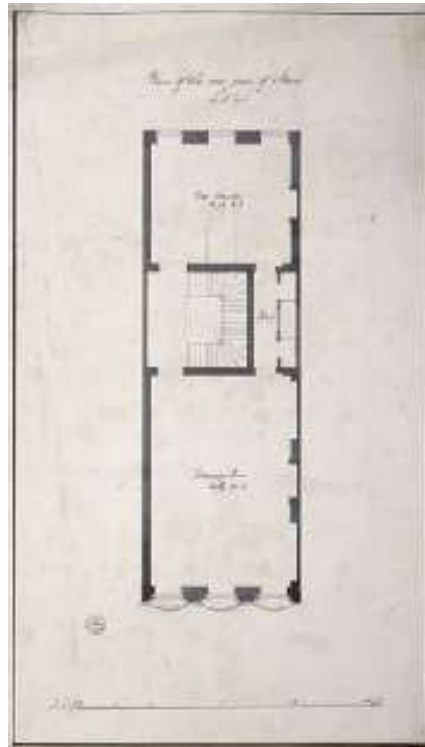
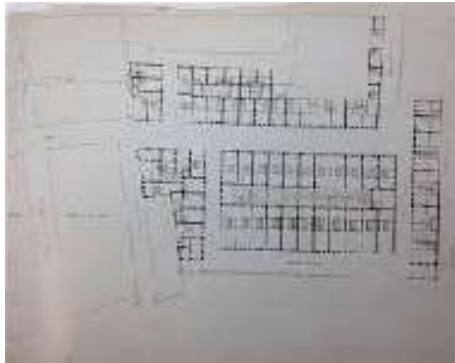
|                |                         | Foote | Inches        |     | Inches   | Length Foote   | Thicknes |     | Depth    |
|----------------|-------------------------|-------|---------------|-----|----------|----------------|----------|-----|----------|
| For the Floors | Summers under           | 15    | 12            | and | 8        | Joysts to 10   | 3        | and | 7 Inches |
|                | Wall plates             |       | 7             | and | 5        | Garret Floores | 3        | and | 6        |
|                |                         | Foote |               |     |          |                |          |     |          |
| For the Roofe  | Principall Rafter under | 15    | at foote      | 8   | 6 Inches |                |          |     |          |
|                |                         |       | at top        | 5   |          |                |          |     |          |
|                | Single Rafter           | 4     | and 3 Inches. |     |          |                |          |     |          |

Scantlings of Timber for the other two sortes of Houses.

Scantlings of Timber for the other two sortes of Houses.

| For the Floors                                |                  | Foote | to | Foote | Breadth Inches | and | Depth Inches |                                    | Thicknes Inches | Depth Inches |
|-----------------------------------------------|------------------|-------|----|-------|----------------|-----|--------------|------------------------------------|-----------------|--------------|
| Summers or Girders which beare in length from |                  | 10    |    | 15    | 11             |     | 8            | Joysts which beare 10 Foote        | 3               | 6            |
|                                               |                  | 15    |    | 18    | 13             |     | 9            |                                    | 3               | 7            |
|                                               |                  | 18    |    | 21    | 14             |     | 10           |                                    | 3               | 7            |
|                                               |                  | 21    |    | 24    | 16             |     | 12           |                                    | 3               | 8            |
|                                               |                  | 24    |    | 26    | 17             |     | 14           |                                    | 3               | 8            |
|                                               |                  |       |    |       | Inches         |     | Inches       |                                    |                 |              |
| Principall Discharges upon Peeres             |                  |       |    |       | 13             | and | 12           |                                    |                 |              |
| In the first Story in the Fronts              |                  |       |    |       | 15             |     | 13           |                                    |                 |              |
|                                               |                  |       |    |       | Inches.        |     |              |                                    |                 |              |
| Binding Joysts with their Trimming Joysts     |                  |       |    |       | 5              |     |              | depth equall to their owne Floores |                 |              |
|                                               |                  |       |    |       | Inches         |     | Inches       |                                    |                 |              |
| Wall plates or raising Pieces and Beames      |                  |       |    |       | 10             | and | 6            |                                    |                 |              |
|                                               |                  |       |    |       | 8              |     | 6            |                                    |                 |              |
|                                               |                  |       |    |       | 7              |     | 5            |                                    |                 |              |
|                                               |                  |       |    |       | Inches.        |     | Inches       |                                    |                 |              |
| Lintells of Oake in the                       | 1st and 2d story |       |    |       | 8              | and | 6            |                                    |                 |              |
|                                               | 3d story         |       |    |       | 5              |     | 4            |                                    |                 |              |

London Act 1666: Rational, empirical and ordered



## GENERALL RULES

In every Foundation within the Ground adde one Bricke in thicknes to the thicknes of the Wall (as in the Scheme) next above the Foundation to be sett off in three Courses equally on both sides.

That noe timber be laid within twelve Inches of the Foreside of the [Chimney (fn. 23)] Jambs, And that all Joysts on the Backe of any Chimney be laid with a Trimmer at six Inches distance from the Backe.

That noe Timber be laid within Tunnell of any Chimney upon penalty to the Workeman for every defaulte ten shillings, and ten shillings every Weeke it continues unreformed.

That noe Joysts or Rafters be laid at greater distances from one to the other twelve Inches, and noe Quarters at greater distance then fowerteene Inches.

That noe Joysts beare at longer length then ten Foote and noe single Rafters at more in length then nine Foote.

That all Roofes Windows frames and Cellar Floores be made of Oake.

The Tile pins of Oake.

Noe Summers or Girders to lye over the Head of Doores and Windowes.

Noe Summer or Girder to lye lesse then ten Inches into the Wall, noe Joysts then eight Inches and to be laid in Lome. (fn. 24.) ]

London Act 1666: Rational, empirical and ordered

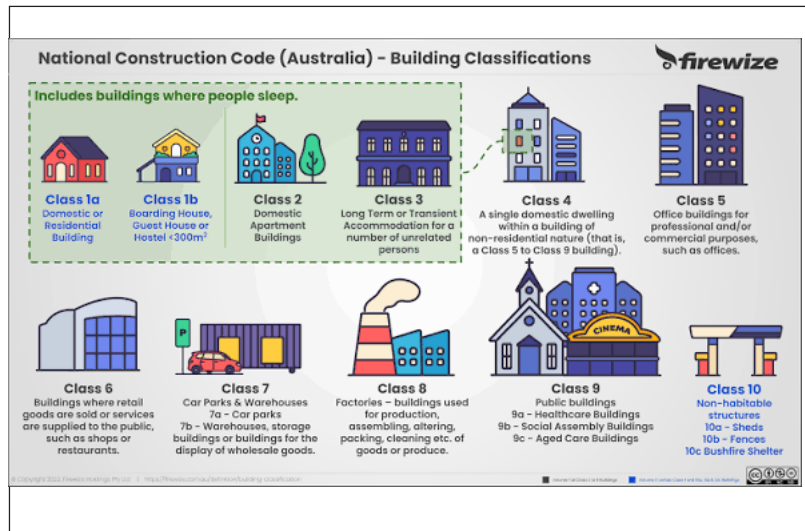


## Buildings divided into types/rates

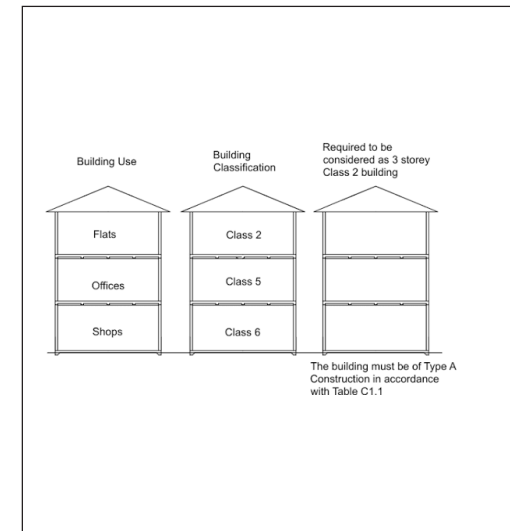
## Type determines construction

A6 — Building classifications

C2D2 — Type of construction  
required



Buildings are classified by use:  
Class 2, 3, 5, 6, 9 etc.

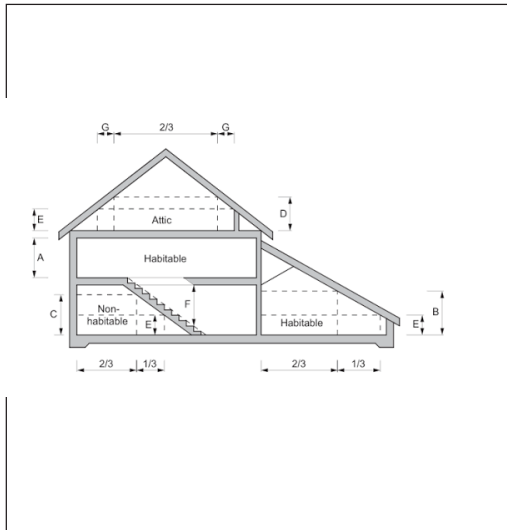


Building class + rise in storeys  
determines Type A, B or C  
construction.

# NCC: Rational, empirical and ordered

## Minimum internal dimensions

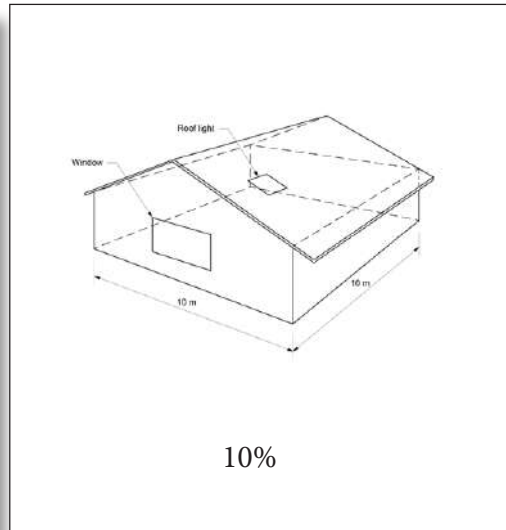
F5D2 — Heights of rooms and other spaces



e.g. many rooms 2.4 m, corridors/sanitary spaces 2.1 m, assembly spaces over 100 people 2.7 m.

## Light converted into a measurable requirement

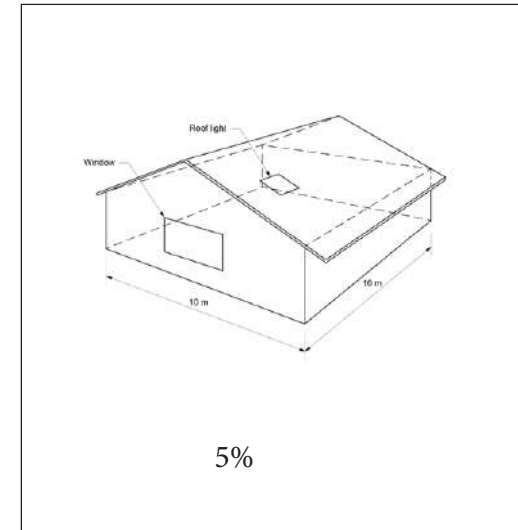
F6D2–F6D3 — Provision / methods and extent of natural light



Whether natural light is required and the quantitative means by which it is provided.

## Ventilation converted into a measurable requirement

F6D6–F6D7 — Ventilation of rooms / Natural ventilation



Natural ventilation can be expressed through openable area relative to floor area; otherwise mechanical ventilation standards apply.

# NCC: Rational, empirical and ordered

## TIME

Rebuilding had to occur within prescribed periods. three years

## NEIGHBOURS/SHARED RESPONSIBILITY

Shared urban fabric requires shared rights and costs.

## DISPUTES

The Act creates mechanisms for judgement, not merely rules.

## PROPERTY / CITY

Private property is reorganised to enable collective reconstruction.

### XIII. Ground not built upon in Three Years;

Notice to build; Neglecting to build; Warrant by Lord Mayor, &c. to Sheriff to impanel a Jury; Jury to estimate Value of Ground on Oath; and then the same to be sold under Common Seal of the City; and the Money paid to the Owner; Sale made and enrolled to be final, and Purchaser may hold and enjoy

### VI. Surveyor's Charge.

Party Walls; Tothing; First Builder to be paid for Moiety of Party Wall and Piers with Interest; If difference between first and later Builders in respect thereof, Remedy.

And bee it enacted That the said Surveyors or Supervisors soe to be appointed [as aforesaid (fn. 2)] and every of them within their severall Precincts shall take care That in building of all Houses within the said City and Libertyes thereof there be, and it is hereby enacted by the Authority aforesaid That there shall be Partie walls and Partie peeres sett out equally on each Builders ground to be built up by the first beginner of such Building and that convenient Tothing be left in the Front wall by the said first Builder for the better joyning of the next House that shall be built to the same, And that noe man be

### XVII. Differences about placing or stopping Lights may be determined by Alderman of the Ward or Deputy; or if concerned or cannot determine, then by Lord Mayor, &c.; No further Appeal.

And to remove all obstacles which otherwise may hinder soe good and profitable a worke Bee it furthe enacted by the Authority aforesaid that all differences arising between the said Builders or any others concerning placing, and, stoping up of Lights Windowes Watercourses or Gutters which may hinder or retard the said building shall and may be heard mediated and determined (if it may be) by the Alderman of the Ward where the cause of any such difference shall arise and his Deputie, and if either the said Alderman or his Deputie be concerned as parties in the controversie, or that they cannot determine the said Differences that then and in ever

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British History Online — An Act for rebuilding the City of London (1666)

*Rebuilding could not be deferred indefinitely*

*Party walls and adjoining owners were regulated so rebuilding could proceed*

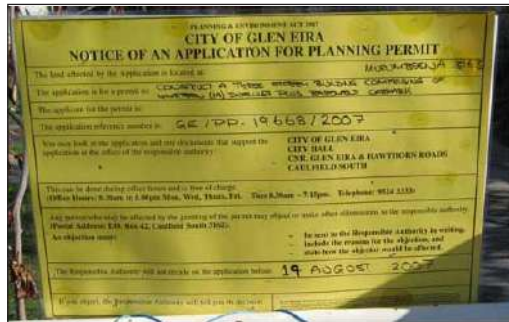
*The Act identifies who decides when parties disagree*

*Private land rights could be reorganised to enable reconstruction*

# London Act 1666: Rules for a social, economic and physical system.

## TIME

Planning permit expiry / commencement and completion periods

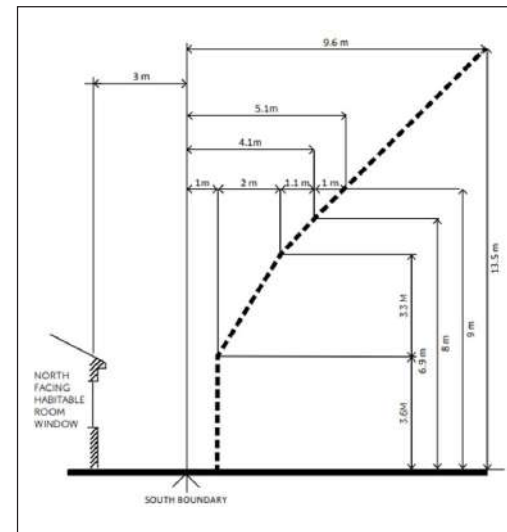


*Development rights are conditional in time, not permanent*

## NEIGHBOURS/SHARED RESPONSIBILITY

boundary/setback/amenity controls

protections for adjoining property



Under Part 7 of the Victorian Building Authority framework, an owner planning construction near a boundary must protect neighboring land from potential damage. Below are key extracts and summaries of core clauses under the Building Act 1993

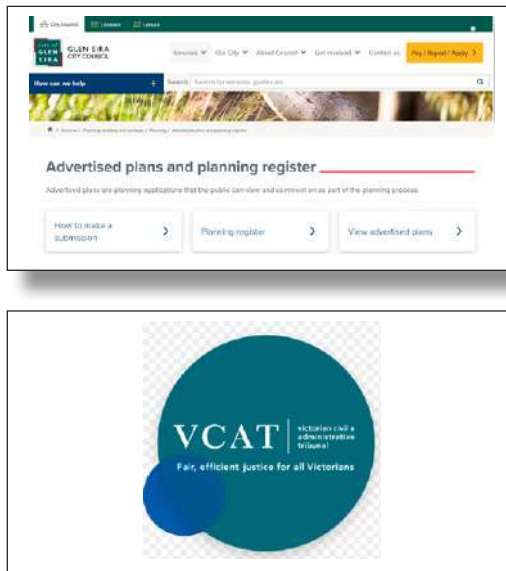
*Private development is constrained by effects on neighbours*

Today: Planning + Dispute processes define construction of the city



## DISPUTES

The Act creates mechanisms for judgement, not merely rules.



*Regulation creates institutions of interpretation and judgement*

## PROPERTY / CITY

Private property is reorganised to enable collective reconstruction.



maximum building envelopes

*Ownership does not mean unrestricted control over land*

Today: Planning + Dispute processes define construction of the city

## BUILDING

health / safety / amenity

## CITY

streets / land / neighbours

## ECONOMY

taxation / value / reconstruction

## INSTITUTIONS

surveyors / disputes / responsibility

The Building Code is not merely a construction manual. It is a model of

### City

#### City/ Urban Environment

- Reconstruction of London- stipulates on the appearance, height,

### Market value

#### Economy/Commerce

- Originally tax was on coal (goods and services tax)
- The right to levy a charge on property – sewer and paving
- Gives land value because you can anticipate what will be built

### Client

#### Person/ Public

- based on minimum requirements for health and safety.
- The dimension of rooms and streets (proportion to air windows and ventilation)
- Parametric minimal amenities

### The Profession & Responsibility

#### Professionals

- Originally tax was on coal (goods and services tax)
- It then became a tax on chimneys
- Tax would go to the existing of Building Surveyor
- Drawings needed to be submitted for approval
- Therefore the existing of the Architect was required.

#### Dispute resolution

- Therefore you could build on the site if someone was absent. You could dispute it later
- You can build a building on a property when the survey was not accurate. you dispute it later.
- The authority to resolve a dispute without recourse.

The Code constructs a system

# Building Code



Anthony Tisdale: We Should Overcome, 1997. Photograph depicting Governor Schwarzenegger's proposed bill to amend the California Building Code, 1997. The image is a reproduction of the original photograph.

Lui

Instruments of Service

67



as

# Battle-ground

Activism, Amendments, and (Co)Authorship

Architects can move from subjects of regulation to participants in its authorship.

Lui: Building Code as Battleground



Inclusive signage by Simona Castricum.

lived experience → advocacy → consultation → NCC change → future buildings

2023 proposal → 2024 consultation → NCC 2025

final NCC 2025 adopted all-gender bathrooms as a Deemed-to-Satisfy option in May 2026.

Who gets written into the Code?



## Livable housing standards

NCC 2022 says a Class 1a dwelling should be easy to enter, easy to navigate, adaptable and responsive to occupants' changing needs, and requires a continuous step-free path subject to exemptions



Image: Swanbuild, “Upcoming Changes to the Construction Code: Livable Housing Design and 7-Star Energy Efficiency”, 2024.

### Achieving the Silver Level Livability Mark

Introducing the 7 core design elements:

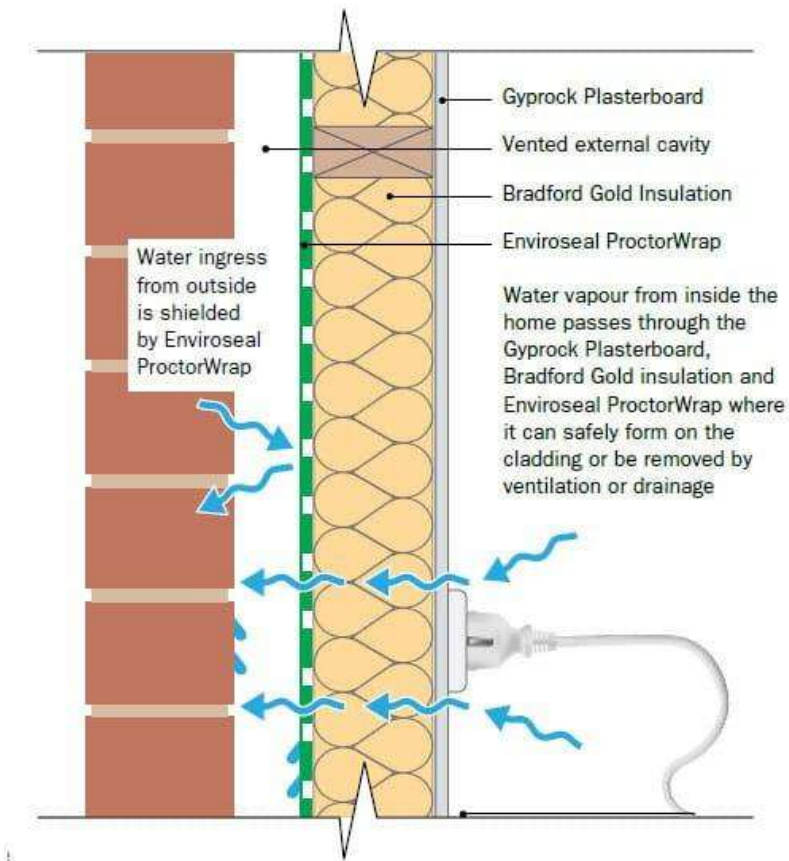
- 1 STEP FREE PATH**  
A safe continuous and step-free path of travel from the street entrance and / or parking area to a dwelling entrance that is level.
- 2 LEVEL ENTRY**  
At least one, level (step-free) entrance into the dwelling.
- 3 INTERNAL MOVEMENT**  
Internal doors and corridors that facilitate comfortable and unimpeded movement between spaces.
- 4 TOILET AT GROUND**  
A toilet on the ground (or entry) level that provides easy access.
- 5 HOBLESS SHOWER**  
A bathroom that contains a hobless (step-free) shower recess.
- 6 REINFORCED WALLS**  
Reinforced walls around the toilet, shower and bath to support the safe installation of grabrails at a later date.
- 7 HANDRAIL ON STAIRS**  
A continuous handrail on one side of any stairway where there is a rise of more than 1 metre.



integratedDESIGNgroup  
architects bathurst | sydney

*What was once exemplary or optional can become ordinary regulatory expectation.*

## When does a value become a minimum standard?



Building Code Compliant in Principle



Unventilated, no exhaust fan running

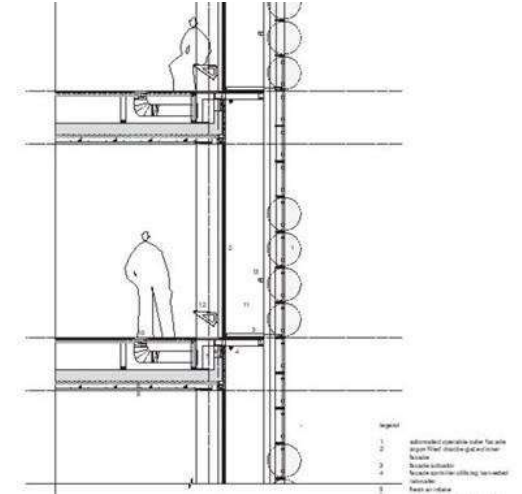
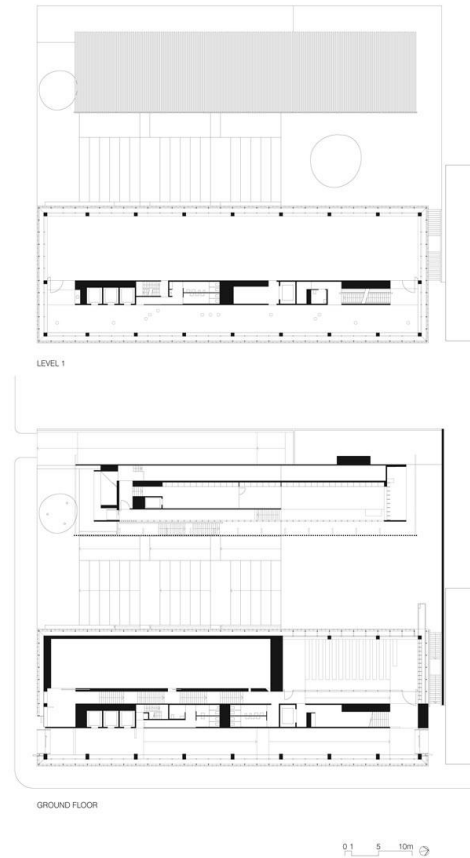
energy efficiency → tighter envelope → moisture risk → new regulatory response

When one good produces another problem





Fire, Water, Building



Are we designing buildings—or instruments?

## THE ARCHITECT AS SUBJECT

What does the instrument require me to do?

## THE ARCHITECT AS INTERPRETER

What is this provision trying to achieve, and how should I realise that intention?

## THE ARCHITECT AS CO-AUTHOR

Are the assumptions behind this instrument still adequate, and how might they change?

The Building Code as more than compliance



instruments enable buildings to exist

they are not neutral

they are provisional — not optional

architects: subject → interpreter → co-author

we design buildings — and participate in shaping the instruments that  
produce them

The Building Code as more than compliance